

## 24SMCV03946 24SMCV03946

County: los-angeles

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Case Number: 24SMCV03946 Hearing Date: July 9, 2026 Dept: P

Tentative

Ruling

SM

10000 Property LLC v. Michel Chakchay, et al., Case No. 24SMCV03946

Plaintiff's

Motion to Tax Costs

Hearing

Date: July 9, 2026

Background

Plaintiff SM 10000 Property, LLC. brought this unlawful detainer action against Defendants Michel Chakchay (Michel), Maya Haider (Ms. Haider), and Georgio Chakchay (Georgio) for nonpayment of rent for unit 2806 at 10000 Santa Monica Blvd. Los Angeles, CA 90067. This matter was resolved in favor of Defendants at a non-jury trial on March 25, 2025.

On September 29, 2025, the Court granted Defendants' Motion for attorneys fees, awarding Defendants' the maximum attorneys' fees allowed under the lease, \$50,000.

On October 22, 2025, Plaintiff filed this Motion to Tax Costs. On June 22, 2026, Defendants filed opposition. On July 1, 2026, Plaintiff replied.

## Arguments

Plaintiff moves to tax Defendants' costs for recording and indexing the abstract of judgment and filing the notice of judgment lien, contending that the costs described in Defendants' Memorandum of Costs lack evidentiary support. (Motion to Tax Costs, p. 4.) Plaintiff contends that Defendants never served them with a copy of the Order for the Judgment Debtor's examination and that Defendants' request for fees and costs associated with that examination are unsupported. (Ibid.)

In opposition, Defendants attach support for the challenged costs, and argue that each challenged cost is authorized by statute and proper on its face, so the burden is on Plaintiff to prove that the costs are unreasonable. (Opposition, p. 4.)

In reply, Plaintiff concedes that Defendants have provided documentation for most of the requests Plaintiff challenged in their initial motion. Plaintiff nonetheless argues that defendants' recording charge is \$56.92 higher than it should be, and that the \$5 notice of filing of a judgment lien should be taxed because it was a cost incurred through defective service and is therefore not reasonable or necessary. (Reply, p. 2.) Plaintiff also argues that the attorneys' fees and filing fee related to the application and order for appearance and examination should be taxed because they were incurred on October 11, 2025, but included in the October 11, 2024 Memorandum of Costs as already-incurred costs. (Id. at p. 4.)

## Motion to Tax Costs

Code of Civil Procedure section 1033.5(a) sets forth the items allowable as costs while Section 1033.5(b) details the items that are not allowable as costs. (Code Civ. Proc., §§ 1033.5, subd. (a), (b).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion." (Acosta v. SI Corp. (2005) 129 Cal.App.4th 1370, 1380.) Costs must be both "reasonably necessary to the conduct of the litigation rather than merely

convenient or beneficial to its preparation,” (Code Civ. Proc., § 1033.5(c)(1)), and reasonable in amount. (Code Civ. Proc., § 1033.5(c)(2).)

Generally, the burden on a motion to tax costs depends upon whether the costs appear proper. “If the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant, and the burden of showing that an item is not properly chargeable or is unreasonable is upon the objecting party.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131.) “The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (Ibid.)

#### Analysis

At the end of the day and aside from attorneys' fees, Plaintiff moves to tax \$56.92 of credit card processing fees, a \$5.00 lien cost, and a \$60.00 filing fee. These costs are facially proper costs, so the burden is on Plaintiff to show that the costs are unreasonable. (See Code Civ. Proc. § 1033.5.)

Plaintiffs first contest \$56.92 of Defendants' \$168.92 cost for recording judgment following Defendants' attorneys' fee motion. Defendants submit evidence that recording the judgment cost \$168.92. (Hermansen Decl., Exhibit B, p. 5.) Plaintiff contends, with no support, that recording cost Defendants only \$112.00. Plaintiff cites no authority holding that mandatory service and credit card processing fees associated with recording a judgment are not recoverable.

Next, Plaintiff contests the \$5.00 fee for filing a notice of judgment lien on personal property on the grounds that it is a fee associated with improper service. Plaintiff submits no evidence that the service associated with the \$5.00 lien cost was improper, and therefore does not meet its burden.<sup>[1]</sup>

Finally, Plaintiff's argument that the \$60 filing fee for the Application for Appearance and Examination is not recoverable because it was incurred on October 11, 2025, the same day that Defendant served the

memorandum of costs, and therefore could not have been actually incurred on October 11, 2025, unreasonably splits hairs. It is possible for a cost to be incurred on the same day a short form is served.

Plaintiff did not raise the issue of attorneys' fees related to the order for appearance of judgment debtor on its initial motion, which questioned only items 2, 3, and 6 in Defendants' Memorandum of Costs. Additionally, Defendants cite no authority allowing the recovery of attorneys' fees for opposing a motion to tax costs after the Court has awarded the maximum fees allowable under a lease agreement. The Court declines to tax fees that were not contested on the initial motion and also declines to award Defendants additional fees.

Plaintiff has not met its burden of demonstrating that Defendants' costs should be taxed.

Conclusion

Plaintiff's Motion to Tax Costs is DENIED.

[1]

Plaintiff argues that service was improper because the lien mistakenly states that 2200 Biscayne Blvd. in Miami, FL is in Miami, CA in one place on the lien. There is no municipality called Miami in California, let alone one containing the famous Biscayne Blvd. The lien clearly refers to Miami, FL.